

LISBURN & CASTLEREAGH CITY COUNCIL

SCHEME OF ALLOWANCES PAYABLE TO COUNCILLORS

1 APRIL 2020 – 31 MARCH 2021

This Scheme is made under Section 31 of the Local Government Finance Act (Northern Ireland) 2011 and the Local Government (Payments to Councillors) Regulations (Northern Ireland) 2019. The scheme has been prepared in accordance with the Department of Communities circular LG 07/2021 Consolidated Councillor Allowances Circular – issued March 2021.

1. Definitions

1.1 In this scheme:

- ‘approved duty’ is as defined in the Local Government (Payments to Councillors) Regulations (Northern Ireland) 2019 as
 - (a) attendance at a meeting of a council, or any of its committees or sub-committees, or at a meeting of a joint committee or any of its sub-committees; or
 - (b) the doing of anything approved by a council or a joint committee, for the purpose of, or in connection with, the discharge of the functions of the council, or any of its committees or sub-committees, joint committees or any of its sub-committee
- ‘Department’ means the Department of Communities;
- ‘guidance’ means the the Department of Communities Guidance issued in March 2021 and
- ‘Regulations’ means the Local Government (Payments to Councillors) Regulations (Northern Ireland) 2019.

2. Commencement Date

2.1 This scheme of allowances shall be operational from 1 April 2020.

3. Basic Allowance

3.1 Subject to sub-paragraph 3.3 and paragraph 8 below, for the period ending on 31 March 2021, a basic allowance of £15,486 shall be paid to each councillor. Where appropriate this shall be paid pro-rata.

3.2 Not more than one basic allowance is payable to any councillor.

3.3 The Basic Allowance includes an element for incidental and consumable costs incurred by councillors in their official capacity. From 1 April 2020, this element within the Basic Allowance is £1,090.

4 Special Responsibility Allowance (SRA)

4.1 For the period ending on 31 March 2021, a special responsibility allowance shall be paid to those councillors who hold the special responsibilities specified in Schedule 1.

4.2 Subject to paragraph 8 below, the amount of each such allowance shall be the amount specified against that special responsibility in that Schedule.

5 Chairperson/Vice- Chairperson Allowance

5.1 For the period ending 31 March 2021, an allowance of £26,982 will be payable to the Chairman (Mayor) of the Council.

5.2 For the period ending 31 March 2021, an allowance of £8,636 will be payable to the Vice Chairman (Deputy Mayor) of the Council.

6 Dependants' Carers' Allowance

6.1 Councillors are entitled to claim a dependants' carers' allowance towards reimbursement of actual reasonable costs necessarily incurred in providing care for a dependant while carrying out an approved duty.

6.2 A dependant lives with the claimant and is defined as:

- a child under 16 years old;
- a child 16 years old or more, where there is medical/social work evidence that full-time care is required;
- an adult with a recognised physical/mental disability where there is medical/social work evidence that full-time care is required; or
- an elderly relative requiring full-time care.

6.3 A dependants' carers' allowance shall be payable based upon actual receipted costs or the appropriate hourly rate, whichever is the lower up to the monthly maximum. Payment will be at the rates given in paragraph 6.4, which are subject to the limits determined by the Department.

6.4 For the period ending on 31 March 2021, the hourly rate of dependants' carers' allowance for standard care shall be £8.72, and for specialised care shall be £17.44. The monthly maximum for standard care paid to individual councillors shall be £454.00, and the monthly maximum for specialised care shall be £907.00. Councillors may claim only one DCA in respect of each occurrence of approved duty. One DCA is payable even if there are 2 or more children/dependants being cared for.

7 Travel and Subsistence Allowances

7.1 A councillor or committee member shall be entitled to claim travel and subsistence allowances where expenditure on travelling or subsistence has been necessarily incurred. The amount claimed should not exceed expense incurred. (Annex A)

7.2 The rates of travel allowance for travel by public transport shall not exceed the actual amount paid. Where reasonably available, the cheapest available form of public transport should be used, except in urgent cases.

7.3 The rates of travel allowance for travel by private vehicle shall be the amounts shown below, which are within the maxima determined by the Department for Communities.

TYPE OF VEHICLE	RATE
A pedal cycle	20.0p per mile
A motorcycle of all capacities	24.0p per mile
A motor car of cylinder capacity exceeding 450cc but not exceeding 999cc	46.9p per mile 13.7p per mile*
A motor car of cylinder capacity exceeding 999cc but not exceeding 1,199cc	52.2p per mile 14.4p per mile*
A motor car of cylinder capacity exceeding 1,199cc	65.0p per mile 16.4p per mile*
An electric car	45.0p per mile 25.0p per mile**
Passenger rate (per passenger)	5.0p

* For mileage above 8,500 miles

**For mileage above 10,000 miles

7.4 The rates of subsistence shall be the amounts shown below, which are within the maxima determined by the Department for Communities.

PERIOD/MEAL	RATES	
	British Isles £	London £
An absence involving an overnight stay only , away from the normal place of residence	100.70	122.45
Breakfast allowance (more than 4 hours away from the normal place of residence or, where approved by the council, a lesser period before 11 am)	11.50	11.50
Lunch allowance (more than 4 hours away from the normal place of residence or, where approved by the council, a lesser period including the period between 12 noon and 2pm)	13.50	13.50
Tea allowance (more than 4 hours away from the normal place of residence or, where approved by the council, a lesser period including the period between 3pm and 6pm)	4.70	4.70
Evening meal allowance (more than 4 hours away from the normal place of residence or, where approved by the council, a lesser period ending after 7pm)	20.95	20.95
Sub-total for meals	50.65	50.65
Total maximum rate (absence of 24 hours)	151.35	173.10

8 General

8.1 This scheme may be revoked and amended at any time.

8.2 If an amendment to this scheme is made which affects payment of a basic allowance or special responsibility allowance in the year in which the amendment is made, then in relation to each of the periods:

- (a) beginning with the year and ending with the day before that day on which the first amendment in that year takes effect; or
- (b) beginning with the day on which an amendment takes effect and ending with the day before that day on which the next amendment takes effect, or (if none) with the year,

the entitlement to such allowance shall reflect the proportion of the year when entitlement existed.

8.3 Where the term of office of a councillor begins or ends other than at the beginning or end of a year, entitlement to a basic allowance shall reflect the proportion of the year when entitlement existed.

8.4 Where a councillor has during part of, but not throughout, a year such special responsibilities as attract entitlement to a special responsibility allowance, that entitlement shall reflect the proportion of the year when entitlement existed.

8.5 Where a councillor, in accordance with section 59(5) or section 60(1) of the Local Government Act (Northern Ireland) 2014, is suspended from carrying out the duties of a councillor, the part of basic allowance, special responsibility allowance and /or chairperson/vice chairperson allowance payable for the period of suspension to the councillor will be withheld.

9 Claims and Payment

9.1 Payments regarding basic allowance and special responsibility allowance shall be made in instalments of one-twelfth of the amount specified in this scheme on the 26th of each month unless it falls on a weekend or public holiday when it will be paid on the nearest preceding working day.

9.2 Claims for dependants' carers' allowance, travelling allowance or subsistence allowance should be made in writing within three months, and should be accompanied by receipts, where appropriate.

10 Publication

10.1 As soon as possible after the end of the year to which the scheme applies (bearing in mind that the legislation gives councillors 3 months in which to submit claims), the Council will arrange for the allowances paid to each councillor to be published on its website.

10.2 The minimum information which will be published is as follows:

- the name of the councillor;
- all positions held (eg chairperson or member of (name) committee) by the councillor concerned;
- basic allowance paid;
- special responsibility allowance paid;
- dependants' carers' allowance paid;
- Mayor and Deputy Mayor's expenses;
- mileage expenses;
- other travel expenses;

- subsistence costs, divided into 2 columns, the first relating to accommodation costs and the second relating to meals;
- attendance at courses, conferences and visits expenses; and
- total expenses.

SCHEDULE 1

The following are specified as the special responsibilities in respect of which special responsibility allowances are payable and the amounts of those allowances.

1. Valid from 1 April 2020

Position	Annual Allowance
Chairman (Corporate Services Committee)	£ 9,395
Chairman (Development Committee)	£ 9,395
Chairman (Environmental Services Committee)	£ 9,395
Chairman (Governance & Audit Committee)	£ 3,758
Chairman (Leisure & Community Development Committee)	£ 9,395
Chairman (Planning Committee)	£11,274
Chairman (Capital Projects Committee)	£ 5,657
Vice Chairman (Corporate Services Committee)	£ 2,819
Vice Chairman (Development Committee)	£ 2,819
Vice Chairman (Environmental Services Committee)	£ 2,819
Vice Chairman (Governance & Audit Committee)	£ 1,127
Vice Chairman (Leisure & Community Development Committee)	£ 2,819
Vice Chairman (Planning Committee)	£ 3,382
Vice Chairman (Capital Projects Committee))	£ 1,691
Partnership Panel Member	£ 610
TOTAL	£76,335

RULES WITH RESPECT TO THE PAYMENT OF TRAVEL ALLOWANCES

- 1.** The rate for travel by public service shall not exceed the amount of the ordinary first class fare or any available cheap first class fare, provided that the sum paid shall not exceed the actual amount disbursed by the councillor or committee member.
- 2.** The rate specified in the preceding paragraph may be increased by supplementary allowances not exceeding expenditure actually incurred— (a) on special supplements, reservation of seats and deposits or portorage of luggage; and
(b) on sleeping accommodation engaged by the councillor or committee member for an overnight journey subject, however, to reduction by one third of any subsistence allowance payable for that night.
- 3.** The rate for travel by taxi shall not exceed—
(a) in cases of urgency or where no public service is reasonably available, the amount of the actual fare and any reasonable gratuity paid; and
(b) in any other case, the amount of the fare which the councillor or committee member would have been entitled to claim if travelling by appropriate public service.
- 4.** The rate for travel by a hired motor vehicle other than a taxi shall not exceed the rate which would have been applicable had the vehicle belonged to the councillor or committee member who hired it, provided that where the council so approves, the rate may be increased to an amount not exceeding the actual cost of the hiring.

5. Fares for travel by air shall be payable if either—

(a) the rate for travel by air does not exceed the rate applicable to travel by appropriate alternative means of transport together with an allowance equivalent to the amount of any saving in subsistence expenses consequent on travel by air; or

(b) the council resolves, either generally or specially, that the saving in time is so substantial as to justify payment of the fare for travel by air, in which case there may be paid an amount not exceeding—

(i) the ordinary or any available cheap fare for travel by regular air service; or

(ii) where no such service is available, or in any case of urgency, the fare actually paid by the councillor or committee member.

6.—(1) If a councillor or committee member uses a private motor vehicle in preference to a public service, or where a public service is not available, the rates per mile payable shall be determined by the council within the maximum rates determined by the Department in respect of the types of vehicles specified in sub-paragraph (2).

(2) The types of vehicles specified for the purposes of sub-paragraph (1) are—

(a) a pedal cycle;

(b) a solo motor cycle of cylinder capacity not exceeding 149cc;

(c) a solo motor cycle of cylinder capacity exceeding 149cc but not exceeding 499cc;

(d) a solo motor cycle exceeding 499cc cylinder capacity or a motor cycle with a sidecar;

(e) a motor car or tri-car of cylinder capacity not exceeding 450cc;

(f) a motor car or tri-car of cylinder capacity exceeding 450cc but not exceeding 999cc;

(g) a motor car or tri-car of cylinder capacity exceeding 999cc but not exceeding 1,199cc; and

(h) a motor car or tri-car of cylinder capacity exceeding 1,199cc.

(3) The rates payable under sub-paragraph (1) may be increased—

(a) where other councillors or committee members are conveyed in the same vehicle on the business of the council, by an additional rate per mile determined by the council for the carriage of each additional passenger;

(b) by not more than the amount of any expenditure incurred on tolls, ferries or parking fees; or

(c) in the case of an absence overnight from the usual place of residence, by an amount determined by the council for garaging a motor car, tri-car, or a motor vehicle of any other type, but not exceeding the amount actually paid by the councillor or committee member.

(4) For the purpose of this paragraph, cylinder capacity shall be calculated in the manner prescribed by regulation 43 of the Road Vehicles (Registration and Licensing) Regulations 2002(1), provided that where the engine of a car has been rebored the calculation shall be based on the engine as it was when new.

7. Subsistence allowances shall be payable in respect of both an absence involving an absence overnight from the usual place of residence and an absence not involving an absence overnight from the usual place of residence.

8. The rates determined in respect of an absence overnight from the usual place of residence shall cover a continuous period of absence of twenty-four hours.

9. For an absence overnight of a period less than twenty-four hours, an appropriate amount in respect of any meal allowance shall be deducted from the maximum rate determined.

10. Any rate determined shall be reduced by an appropriate amount in respect of any meal provided free of charge by any body during the period to which the allowance relates.

11.—(1) For an absence from the usual place of residence overnight in London or exceptionally in any other place in the British Isles approved by the Department, the rates may be increased by a supplementary allowance of such amount as the council may determine. (2) For the purpose of this paragraph London means the City of London and the London Boroughs of Camden, Greenwich, Hackney, Hammersmith and Fulham, Islington, Kensington and Chelsea, Lambeth, Lewisham, Southwark, Tower Hamlets, Wandsworth and Westminster.